GENERAL TERMS AND CONDITIONS

1. SERVICES.

1.1 Services Provided. Contractor shall furnish all supervision, labor, material, supplies, fuel, power, equipment, tools, transportation, shop drawings, samples, and services necessary to provide, construct, fabricate, install, and completely finish all of the Work. The Work shall be performed as follows: in accordance with the best practice of other contractors similarly situated to Contractor; in compliance with the Construction Documents and all items reasonably inferable from the Contract Documents necessary to produce the results intended, and all applicable requirements of all laws, ordinances, codes, rules, regulations, and decisions of all governmental authorities, including all federal, state, county, city, local, and municipal bodies having jurisdiction over Owner, Contractor, the Site, the Project, the Work, or any of the foregoing ("Legal Requirements"); and without use of asbestos, asbestos-containing materials, or other hazardous or toxic materials, substances, or waste (i) as defined from time to time by applicable Legal Requirements, (ii) that would cause or pose a material threat, hazard, or risk to human health or safety or to the environment, or (iii) that may result in the imposition of, or form the basis for, any claim or damages. Contractor shall obtain and pay for all permits, licenses, and full inspection fees and taxes, except as otherwise provided in the Contract Documents. The Work shall commence only after Contractor has obtained all applicable permits. The Work shall be accomplished to the satisfaction of Owner without interruption to the facilities or operations of Owner and with a minimum of inconvenience to Owner as judged by Owner. For the safety and protection of those on, adjacent to, or near the Site, Contractor shall provide proper and sufficient security to secure the Site and the construction area where Work is being performed. Contractor shall prevent dust, dirt, rubbish, and debris from escaping beyond the construction area where the Work is being performed and from being disseminated beyond the Site. Contractor shall keep the Site free from any accumulation of rubbish, debris, and waste. Contractor shall prosecute the Work diligently and provide sufficient labor forces to complete the Work (including the supply of materials and equipment to the Site) by the Date of Substantial Completion and Date of Final Completion, as such terms are defined herein. Upon completion of the Work, Contractor shall thoroughly clean all Work and leave those portions of the Work and Site in which Contractor has been working in a clean and orderly condition. Without limiting the foregoing, any surface that may have become dirty or marred during prosecution of the Work shall be thoroughly cleaned and/or restored. In the event Contractor fails to, refuses to, or does not (a) provide proper and sufficient security as described in this Section 1.1; (b) contain the dust, dirt, rubbish, debris, and waste as described in this Section 1.1; or (c) thoroughly clean the Work and leave the Site in the condition described in this Section 1.1, then Owner may perform or arrange for the performance of these tasks and backcharge to Contractor all of the costs Owner incurs to do same.

1.2 Review of Construction Documents and Site Conditions. Prior to the commencement of Work and from time to time thereafter, Contractor shall examine the Construction Documents to determine the existence of inconsistencies, errors, or omissions impacting the execution of the Work. Contractor shall examine the Site for conditions materially different from those indicated on the Construction Documents and field verify all measurements identified on the Construction Documents. Contractor shall notify Owner in writing before commencing the Work or any applicable portion thereof in the event any discovered inconsistency, error, omission, Site condition, or field measurement may impact adversely the Work or any portion thereof. Contractor shall not be responsible for ensuring that the Contract Documents are in accordance with the applicable Legal Requirements. Contractor's review of the Contract Documents is for the purpose of facilitating construction in Contractor's role as a General Contractor and not as a design professional peer review. Contractor shall not be responsible for errors or omissions in the Contract Documents or variances in conditions unless it knew or should have known and failed to notify Owner prior to proceeding with the Work.

1.3 Licenses and Authorizations. Contractor represents that it is fully licensed in and authorized to perform the Work by the state and any other relevant jurisdiction where the Project is located and that all persons or entities performing the Work under this Agreement shall possess the requisite skill, training, and experience and hold all licenses and permits required by law.

1.4 No Additional Work. This Agreement shall not create any rights for Contractor for any further phase of the Project beyond the scope of services set forth in this Agreement or for any work on any other project of Owner. Contractor shall not perform any additional work without written authorization from Owner.

1.5 Subcontractors. Contractor may subcontract any portion of its Work to Subcontractors only upon the prior written consent of Owner ("Subcontract"). Contractor promptly shall provide Owner with a complete copy of any or all Subcontracts upon Owner's request. The term "Subcontractor" means a person, entity, or organization having a direct contract with Contractor or another Subcontractor to perform a portion of the labor or to supply material or equipment for the Work. The term Subcontractor includes any employee, agent, officer, director, partner, principal, or representative of Subcontractor. Owner may require Contractor to replace any Subcontractor that Owner deems to be unacceptable at any time during the Project. If Subcontractor was reasonably qualified and not in default, the GMAX shall be equitably adjusted for the cost of a replacement subcontractor.

1.6 Subcontractor Assignment. Contractor assigns, transfers, and grants to Owner all the rights, title, and interests of Contractor in, to, and under each Subcontract that Contractor enters into regarding the performance of the Work. Upon Contractor's default under this Agreement or the termination of this Agreement by either Owner or Contractor, Owner, in its sole, absolute, and subjective discretion, may accept assignment and may reassign the Subcontract to another contractor or any other

person or entity of Owner's choosing. Contractor agrees that each Subcontract entered into by Contractor shall contain (i) the consent of such Subcontractor to the foregoing assignment, and (ii) the agreement of such Subcontractor that, upon written notice from Owner to Subcontractor that Owner has exercised its right of assignment under this Agreement, such Subcontractor shall continue to perform its obligations under the Subcontract for the benefit of Owner.

1.7 Owner Representative. Owner will designate in writing an Owner Representative for the Project. All communications from the Contractor relating to the Work or the Project shall be conveyed through the Owner Representative.

1.8 Schedule of Values. The term "Schedule of Values" means a schedule in the form attached hereto as Exhibit A that Contractor must submit to Owner and Architect upon execution of this Agreement. The Schedule of Values must list all of the major components of the Work as specified by and acceptable to the Owner, together with a value assigned to each component. The Schedule of Values, unless objected to by Owner or Architect, shall be used as a basis for reviewing Contractor's Applications for Payment, as such term is defined in Section 12.1 hereof. The Schedule of Values shall identify the Subcontract amount for each and every Subcontractor.

1.9 Key Personnel. Contractor represents that the personnel approved by Owner and listed as Key Personnel on the form attached hereto as Exhibit B (Key Personnel) shall be dedicated to the Project until the Date of Final Completion. Contractor shall obtain Owner's written approval to remove any of the Key Personnel from the Project for any reason. In the event substitution of any Key Personnel becomes necessary due to the removal, death or severe illness or injury of such Key Personnel, or if any Key Personnel voluntarily leaves the employ of Contractor, the substituted personnel shall be pre-approved in writing by Owner. If Owner, in its sole, absolute, and subjective discretion, determines that any member of the Key Personnel is insufficiently performing his or her duties under this Agreement, Owner may direct Contractor to replace such Key Personnel member with a substitute acceptable to Owner and Contractor. Contractor acknowledges and agrees that the designation of such Key Personnel and their availability to perform the Work is a material inducement to Owner entering into this Agreement.

1.10 Cleanliness. Contractor at all times shall keep the Site free from accumulation of waste materials or rubbish caused by Contractor's operations and shall prevent dust, dirt, rubbish, and debris from escaping beyond the construction area where Work is being performed. At the completion of the Project, Contractor shall thoroughly clean all Work and leave those portions of the Work and Site in which Contractor has been working in a clean and orderly condition and remove all Contractor's waste materials and rubbish from and about the Project as well as Contractor's tools, construction equipment, machinery and surplus materials, and leave the Site broom clean.

2. INTENTIONALLY OMITTED.

3. WAIVER OF CONTRIBUTION AND INDEMNIFICATION.

3.1 Contractor's Waiver and Indemnification. To the fullest extent permitted by law, Contractor waives any right of contribution and shall indemnify and hold harmless Owner, its designees, and the additional insureds listed in Exhibit J, and their respective agents and employees, general and limited partners, members, managers, shareholders, affiliates, officers and beneficiaries (collectively the "Indemnitees") from and against all claims, damages, losses, or expenses, including, but not limited to, attorneys' and experts' fees and court and arbitration costs, to the extent caused by or arising out of the performance of the Work; provided, that any such claim, damage, loss, or expense is caused in whole or in part by any act or omission of Contractor, Subcontractors, anyone directly or indirectly employed by any of them, or anyone for whose acts any of them may be liable. Such obligation shall not be construed to negate, abridge, or otherwise reduce any other right or obligation of indemnity or contribution that would otherwise exist as to any party or person described in the Contract Documents.

3.2 Contractor's Defense of Owner. Contractor shall defend the Indemnitees and their respective agents and employees, from and against all claims, damages, losses, and expenses, including, but not limited to, attorneys' and experts' fees and costs and court and arbitration costs, arising out of or resulting from or in connection with the performance of the Work; provided, that any such claim, damage, loss, or expense is caused in whole or in part by the actual or alleged act or omission of Contractor, Subcontractors, anyone directly or indirectly employed by any of them, or anyone for whose acts any of them may be liable.

3.3 No Limitation. In any and all claims, damages, losses, or expenses by any employee of Contractor, Subcontractors, anyone directly or indirectly employed by any of them, or anyone for whose acts any of them may be liable, the indemnification obligation under this Section shall not be limited in any way by any limitation on the amounts or types of damages, compensation, or benefits payable by or for Contractor or any Subcontractor under workers' or workmen's compensation acts, disability benefit acts, other employee benefit acts, or any judicial interpretation of these acts.

3.4 Claim, Damage, Loss, and Expense. The terms "claim," "damage," "loss," and "expense," either in the singular or plural, as these words are used in the Contract Documents, shall be construed to include, but not be limited to: (1) injury or damage caused by or resulting from any act or omission of Contractor, Subcontractors, anyone directly or indirectly employed by any of them, or anyone for whose acts any of them may be liable; (2) all attorneys' and experts' fees and arbitration and/or litigation costs incurred in bringing an action to enforce the provisions of this indemnity or any other indemnity contained in the Contract Documents; and (3) all payments, expenses, costs, arbitration and/or litigation costs and attorneys' and experts' fees and costs

incurred by Owner, its designees, or Architect, or their respective agents or employees, in defending and/or satisfying any claim, damage, loss, or expense.

3.5 Indemnitee's Own Negligence. Only to the extent prohibited by law, a party shall not be indemnified against the indemnitee's own negligence.

3.6 Waiver of Immunity/Limitation. Contractor waives any immunity from or limitation on its contribution liability to Owner based upon the applicable workers' or workmen's compensation act or any judicial interpretation of that act.

3.7 Release. To the extent permitted by applicable law, Contractor agrees to look solely to its insurers, and does hereby release and waive any and all rights it has now, or may in the future have, to recover any of Owner's direct or indirect interest holders, beneficiaries, general and limited partners, members, managers, shareholders, officers, agents, servants, affiliates, or employees (collectively the "Releasees"), for loss or damage to property, or personal injury or death (including, but not limited to, claims for damage to property of Contractor and injury to, or death of, employees of Contractor and claims for contribution or indemnity or for reimbursement of workers' compensation benefits), in any way relating to or resulting from the Work performed or to be performed under or in connection with this Agreement. Contractor hereby waives all rights of subrogation of its insurers with respect to claims against Releasees.

4. COSTS TO BE REIMBURSED. Contractor's compensation includes reimbursement for the Cost of the Work, subject to the GMAX. The term "Cost of the Work" shall mean costs necessarily incurred by Contractor per rates set forth in **Exhibit K** in the proper performance of the Work and actually paid by Contractor but shall include only the costs specified below in this Section 4, unless otherwise approved in writing by Owner. It is the parties' intent that this contract is "open book." Owner shall have right to review and inspect all construction costs at any time. Cost of the Work includes the following:

4.1 Work Performed by Contractor.

4.1.1 Wages. Wages of construction laborers employed by Contractor to perform the Work at the Site, but only if such costs are incurred and actually paid and not otherwise part of General Conditions Costs.

4.1.2 Salaries. Salaries for Key Personnel and other Contractor supervisory and administrative staff(i) as pre-approved by Owner in writing on Exhibit B and (ii) when and if the services of the Key Personnel are required; provided, however, such salaries shall be paid only as incurred and to the extent actually paid by Contractor and only for such time the employees actually devote to the Work. To be an allowable cost, such Key Personnel must be working on the Project but are not required to work exclusively at the Site.

4.1.3 Burden Rate. An amount calculated by applying the Burden Rate to the salaries paid to Key Personnel and construction laborers in accordance with Sections 4.1.1 and 4.1.2. The Burden Rate shall not be greater than 20%. The amount calculated in accordance with this Section 4.1.3 represents reimbursement to the Contractor for all employee-related taxes, fringe benefits (including holiday and sick pay; personal days; maternity, paternity, medical, or family leave; retirement plans; bonuses paid pursuant to standard bonus program of Contractor; and vacation pay), and employee-related insurance coverage. Contractor represents that the Burden Rate herein, or as the Burden Rate may be adjusted from time to time with Owner's prior written approval, shall be at all times no higher than that used in Contractor's other operations in the area where the Project is located and does not include any profit or overhead. Contractor further represents that any item included in the Burden Rate shall not be separately billed to Owner.

4.2 Payments for Work Executed by a Subcontractor. Payments made by Contractor to Subcontractors for Work performed pursuant to Subcontracts executed by Contractor in accordance with this Agreement.

4.3 Costs of Materials and Equipment Incorporated into the Completed Construction. Cost of all materials, supplies, and equipment incorporated in the Work, including costs of transportation thereof.

4.4 Costs of Materials, Supplies and Equipment Consumed in the Work. Costs, and rental charges, including transportation and maintenance, of all materials, supplies, equipment, temporary facilities, and hand tools not customarily owned by workers that are consumed in the performance of the Work; and costs, less salvage value, of such items used but not consumed that remain the property of Contractor.

4.5 Sales Taxes. Sales taxes, which shall mean, as used herein, sales, consumer, use, or similar taxes related to goods and services included in the Work (including such taxes on materials and/or services supplied by Subcontractors) imposed by any governmental authority. Contractor agrees that all taxes specified in this Section 4.5 shall be paid as they become due. Owner reserves the right to be invoiced separately for all materials and taxes thereon (including materials to be acquired by any Subcontractor), to require that all Subcontracts be "separated contracts," i.e., a contract that recites charges for labor separately from the charges for material, to cause Contractor to be invoiced specifically as agent for Owner for such taxes, or to structure the payment of such taxes in such other reasonable manner as Owner may deem necessary or appropriate to accomplish the foregoing. To the extent that Owner does not exercise its right to be invoiced directly, it is agreed that Contractor is to be the agent of Owner for the sole purpose of paying all such taxes and for purchasing or otherwise acquiring the materials, supplies, and equipment to which such taxes relate. Provided, further, such agency is not intended to and shall not confer any rights upon any third parties. To the extent that Owner reimburses Contractor for any such taxes, Contractor agrees to indemnify Owner and hold Owner

harmless against all losses and liability for payment of such taxes, and Owner agrees to indemnify Contractor against all losses and liability arising from any agency relationship created or alleged to be created by reason of Owner's exercise of its rights under this Section 4.5.

4.6 Emergencies. Costs incurred due to an emergency affecting the safety of persons and/or property, where such emergency is not due to Contractor's or Subcontractors' willful misconduct, negligence, or breach of the Agreement.

4.7 General Conditions Costs. General Conditions Costs as set forth in Exhibit C (General Conditions Costs); and can be adjusted by use of Contingency as set forth on Page 3 of this Agreement.

4.8 Premiums for that portion of insurance including Subcontractor Default Insurance and bonds required by the Contract Documents.

4.9 Costs of repairing or correcting damaged or nonconforming Work executed by the Contractor, Subcontractors, or suppliers, provided that (a) such damaged or nonconforming Work was not caused by the negligence of, or failure to fulfill a specific responsibility by, the Contractor.

5. COSTS NOT TO BE REIMBURSED. The term "Cost of the Work" shall not include any of the items set forth below in this Section 5.

5.1 Salaries of Contractor's Personnel at Principal Offices. Salaries or other compensation of Contractor's personnel at Contractor's principal and branch offices not working at the project site except as otherwise expressly provided in Section 4.1.2.

5.2 Expenses of Contractor's Principal Offices. Expenses of Contractor's principal and branch offices other than the field office.

5.3 Contractor's Capital Expenses. Any part of Contractor's capital expenses, including interest on Contractor's capital employed for the Work.

5.4 Rental or Depreciation Costs. Except as specifically provided for in Section 4, rental costs of machinery and equipment or depreciation expenses of machinery or equipment owned by Contractor.

5.5 Overhead and Profit. Overhead or general expenses of any kind, except as may be expressly included in Section 4 or approved in writing by Owner, or profit of any kind. Contractor represents that all overhead and profit to be paid to Contractor is in Contractor's Fee.

5.6 Costs Due to Willful Misconduct, Negligence, or Breach. Costs incurred due to the willful misconduct, negligence, or breach of the Agreement by Contractor, any Subcontractor, anyone directly or indirectly employed by any of them, or for whose acts any of them may be responsible or liable, including, but not limited to, the correction of Defective Work (as defined in Section 10.1 below), disposal of materials and equipment wrongly supplied, or making good any damage to property.

5.7 Professional and Trade Association Costs. Except as set forth herein, costs incurred by reason of Contractor's membership in, or fees paid by Contractor to, trade or professional organizations.

5.8 Costs Incurred Prior to Date of Commencement. Compensation to Contractor or costs incurred by Contractor in connection with the Work or the Project prior to Date of Commencement, unless otherwise so stated in this Agreement or authorized in writing by Owner.

5.9 Taxes. Contractor's federal, state, or local income taxes.

5.10 Unspecified Costs. The cost of any item not specifically and expressly included in the items described in Section 4.

5.11 Costs in Performance of Warranty and Guarantee. Costs and expenses of Contractor in connection with the performance of or the administration of the warranty after the Date of Final Completion.

5.12 Insurance Deductibles. Insurance deductibles paid by Contractor.

5.13 Attorneys' Fees. Any and all attorneys' or experts' fees or costs or other legal or consultant expenses incurred by Contractor in the performance of the Work or otherwise arising from the Project.

6. TIME.

6.1 Time is of the Essence. Contractor acknowledges and agrees that time is of the essence with respect to Contractor's performance of this Agreement. Contractor further acknowledges that Owner may incur costs and damages due to delays in the Project's Substantial Completion or Final Completion, including, but not limited to, expenses incurred due to the inability to access or occupy the Project or Site or use it for Owner's intended purpose.

6.2 Liquidated Damages. The parties recognize the delays, expenses, and difficulties involved in proving the actual loss suffered by Owner in the event of Contractor's failure to achieve Substantial Completion within the Contract Time. Accordingly, instead of requiring any such proof, Contractor and Owner agree that as liquidated damages for delay, but not as a penalty, Contractor shall pay Owner the Liquidated Damages Amount as specified and described on page 2 of this Agreement. The parties agree that such amount reasonably approximates the actual damages that would be suffered by Owner as a result of Contractor's failure to achieve Substantial Completion within the Contract Time.

6.3 Construction Schedule. The Contractor has prepared a construction schedule for the Work which is attached hereto as **Exhibit E** (the "Construction Schedule"). The Contractor shall perform the Work in accordance with the Construction Schedule

prepared by Contractor and approved by Owner. The Construction Schedule shall be in a detailed precedence-style critical path management ("CPM" or Primavera-type format satisfactory to the Owner) which shall also: (i) provide a graphic representation of all activities and events that will occur during performance of the Work; (ii) identify each phase of construction and occupancy; and (iii) set forth dates that are critical in ensuring the timely completion of the Project in accordance with the Dates of Substantial and Final Completion (hereinafter referred to as "Milestone Dates"). Among other things, the Construction Schedule identifies and depicts the following: (a) all major design, procurement, and construction elements of the Work, including all Milestone Dates and dates upon which Owner shall evaluate and confirm the progress of the Work; (b) each element by trade; (c) all critical path activities; (d) the relationship in number of days and types of linkage between all linked activities; (e) coordination and integration of design schedules, and all Construction Schedule updates, Owner's responsibilities, governmental authorities' reviews, early access dates for certain portions of the Work by Owner, and other activities necessary for the timely completion of the Work in accordance with the requirements of the Milestone Dates, and (f) other items and information reasonably required by Owner. During the progress of the Work, the Contractor shall deliver to the Owner monthly updates of the Construction Schedule, in a format showing the Milestone Dates and all changes to the critical path dates and the current progress of all aspects of the Work. Changes to any Milestone Date shall be made by Change Order only.

6.4 Definition of Force Majeure. The term "Force Majeure" shall mean an act of God, fire, tornado, hurricane, flood, earthquake, explosion, war on American soil, act of terrorism on the Project, civil disturbance, labor disturbance, labor strikes not at the Site of the Project, an unusually severe storm designated as a 50-year storm or greater by the National Climate Data Center, or an unavoidable casualty beyond Contractor's control, where any such event is not caused by the negligent act or omission of Contractor or Subcontractor or someone else for whom Contractor is responsible. Contractor's sole remedy for a Force Majeure Event shall be an extension of the Contract Time and actually incurred costs that could not be avoided and as agreed to by the Owner, which agreement shall not be unreasonably withheld.

7. CHANGE ORDERS.

7.1 No Change in Work Except by Change Order or Owner-Directed Change Directive. There shall be no change in the Work or adjustments in the GMAX or Contract Time except by a written Change Order signed by Owner, Architect, and Contractor prior to the performance of the change in the Work ("Change Order") or by an Owner-directed change directive in accordance with Section 7.6. To document an amendment to this Agreement, the parties must use the form titled "Change Order," attached hereto as Exhibit D (Change Order Request Form and Change Order).

7.2 Change Event. Additionally, should Contractor believe that a Change Event has occurred entitling Contractor to a modification of the GMAX or Contract Time, Contractor must submit to Owner a properly executed Change Order Request Form within seven (7) days from when Contractor knew or should have known of the Change Event giving rise to the change in the Work. This requirement is a precondition to any claim by Contractor for a change in the GMAX or Contract Time. Should Contractor fail to meet this requirement, Contractor shall be deemed to have waived its right to seek a modification to the GMAX or Contract Time for the Change Event; provided, however, Contractor shall not be entitled to an increase in the GMAX or extension of the Contract Time to the extent Contractor caused the Change Event.

7.3 Definition of Change Event. A "Change Event" is defined as: (1) Architect-issued modifications to the Construction Documents; (2) a written interpretation from Architect that varies from the scope of the Work; (3) a Force Majeure event; (4) Owner's suspension of the Work; or (5) conditions encountered at the Site that are subsurface or otherwise concealed physical conditions differing materially from those specifically indicated in the Contract Documents.

7.4 Payment for Change Order Work. Contractor shall not be paid for any changed Work unless Contractor satisfies the requirements and limitations set forth in Sections 7.1, 7.2, and 7.3 above. Owner and Contractor may agree upon a lump sum amount for the Change Order Work. If no agreement can be reached regarding payment for such changed Work, Contractor shall be paid the following: (i) Contractor's Cost of the Work for the changed Work, as approved by Owner (which Cost of the Work shall not include overhead and profit to any Subcontractor of greater than ten percent (10%); plus (ii) Contractor's Fee percentage for Contractor's overhead and profit in the amount of 5%. Such Cost of the Work may include General Conditions Costs in accordance with Exhibit C hereto but must be incurred only as a direct result of the changed Work.

7.5 Impact of Change Order on GMAX and Contract Time. The amount of any Change Order shall be added to or deducted from the GMAX. The Date of Substantial Completion and/or Date of Final Completion may be adjusted equitably in the Change Order at Owner's sole but reasonable discretion in order to compensate for any material impact on Contractor's ability to finish the Work by the original Date of Substantial Completion and/or Date of Final Completion.

7.6 Owner's Right to Make Changes. Owner reserves the right to require Contractor to perform changes to the Work without a signed Change Order pursuant to a written directive signed by Owner before the changes are made. Contractor shall be compensated for such Owner-directed changes to the Work in accordance with the formula set forth in Section 7.4. If Owner and Contractor cannot agree on whether Work to be performed arises out of a Change Event, Contractor shall perform the disputed Work and may proceed with a claim in accordance with Section 16 below, but shall provide Owner with notice of such Contractor-claimed Change Event as set forth in Section 7.1, 7.2 and 7.3 above.

8. ADMINISTRATION. Contractor shall be in control of and responsible for all construction means, methods, procedures, techniques, sequences and job site safety and shall comply with all applicable Legal Requirements. Contractor shall attend, schedule, conduct, and record minutes of all meetings for the Project as requested by Owner and shall promptly distribute minutes to all participants and Owner. Contractor shall coordinate its Work with that of other contractors involved in the Project and/or employed by Owner and/or working at the Site. Contractor shall take necessary action to assure that the Project and any other project of Owner are not disrupted because of strikes, picketing, or other labor disturbances.

9. SAFETY. Notwithstanding any other provision contained in this Agreement, Contractor shall be responsible for all necessary safety precautions, programs, and policies in connection with the Work, the Site, and the Project, including, but not limited to, providing the protection necessary to prevent injury to any person who may be present at, adjacent to, or near the Site, whether worker, employee, patron, visitor, invitee, guest, passerby, or otherwise; and for loss or damage to property, including, but not limited to, all materials and equipment incorporated or to be incorporated into the Work, whether in storage or on or off the Site.

10. WARRANTY.

10.1 Contractor's Warranty. Contractor hereby warrants and guarantees the following: (a) that all materials will be new unless otherwise approved by Owner; (b) that all Work shall be performed in a good and workmanlike manner; (c) that the Work is in compliance with all applicable Legal Requirements; (d) that the Work shall conform to the Agreement and Contract Documents; and (e) that the Work shall be free from defects as determined by Owner. Any Work not in conformance with this guarantee shall be considered defective ("Defective Work").

10.2 Defective Work. In addition to Contractor's warranty obligations in Section 10.2, Contractor, at Contractor's sole expense, agrees to repair or replace at Owner's option and to Owner's satisfaction any Defective Work for a period of one (1) year from the actual or scheduled Date of Substantial Completion, whichever is later, or from early termination of this Agreement as herein provided; the phrase "repair or replace" includes, without limitation, providing the labor, equipment, and materials required to perform the repair or replacement. Contractor, at Contractor's sole expense, shall repair or replace at Owner's option and to Owner's satisfaction all materials, equipment, goods, and other property damaged as a consequence of Defective Work. If Contractor performs or causes to be performed any corrective work under this Section 10.2, the one (1) year call-back period shall begin anew from the date of Owner's acceptance of that corrected work. The provisions of this Section 10 shall survive completion of the Work to be performed under this Agreement or the early termination of this Agreement. The provisions of this Section 10.2 shall not act as a time limitation on the obligations of Contractor in Section 10.1.

10.3 Form of Subcontractor Warranties. All guarantees and warranties from Subcontractors shall be made on their letterhead, countersigned by Contractor, and addressed to and in favor of Owner. Any and all guarantees and warranties from manufacturers, other suppliers, or any other persons or entities performing the Work shall run to Owner.

11. ALLOWANCES.

11.1 Allowance Estimates. If a certain portion of the Work cannot be determined prior to determination of the GMAX, Contractor may propose an estimate of the cost for each such item of Work that properly would be reimbursable as part of the Cost of the Work. Such estimate shall be described as an "Allowance" and shall be detailed in Exhibit F (Allowances) hereto. Each item of Work described in Exhibit F shall contain a detailed breakdown of the assumptions for each Allowance, including assumptions pertaining to quantity, quality, and inclusion or exclusion of cost. By providing an Allowance for an item of Work, Contractor represents to Owner that each such Allowance is a reasonable estimate and was determined using Contractor's best skill and professional judgment of the amount of such Allowance and taking into account the following: (1) the Construction Documents and other information existing at the time the Allowance was determined; (2) the labor and material standards and the construction means, methods, and techniques prevailing in the industry for the Work covered by the Allowance; and (3) the level of labor and material costs generally prevailing in the locality of the Project at the time the Allowance was determined. The Allowance estimate shall include, without limitation, all supervision, labor, material, supplies, fuel, power, equipment, tools, taxes, transportation, services, General Conditions Costs, and all Subcontractor overhead and profit. To the extent any Allowance is inconsistent with the standards set forth above, Contractor shall provide to Owner a written explanation of the basis for the difference.

11.2 Notice of Increase in Allowance. If Contractor becomes aware that an Allowance provided in Exhibit F will be exceeded, Contractor shall promptly notify Owner in writing. Upon receipt of such notice, Owner, in its sole, absolute, and subjective discretion, may do any of the following:

11.2.1 Increase Allowance by Change Order. Owner may issue a Change Order increasing the GMAX by the amount necessary to furnish or construct the item of Work covered by the Allowance.

11.2.2 Redesign of Allowance Items. Owner may direct the Architect to redesign the item of Work giving rise to the Allowance in such a manner that the item of Work can be constructed within the amount of the Allowance. If Owner elects to so redesign, Contractor agrees to cooperate and shall obtain agreements from its Subcontractors to cooperate with Owner and Architect and any other consultant of Owner in order that the Allowance will not be exceeded. Contractor shall not be responsible for any fees

charged by Architect or a consultant in the event of a redesign effort. Contractor promptly shall inform Owner in writing of all quality-related and construction-related issues pertaining to any proposed redesign in order to allow Owner to make well-informed decisions of all potential redesigned items.

11.3 Notice of Decrease in Allowance Cost. If the cost or construction of any item of Work is less than the Allowance for that item, Contractor promptly shall notify Owner in writing and an appropriate Change Order shall be prepared reducing the GMAX.

12. CONDITIONS OF PAYMENT.

12.1 Monthly Submittals. On or before the fifth (5th) day of each month or upon such other time as mutually may be agreed upon by the parties, Contractor shall submit to Owner an Application for Payment and a Contractor's Sworn Statement, together with an original, executed, and notarized waiver of lien, on the forms attached hereto in Exhibit G (Forms of Application for Payment, Contractor's Sworn Statement, Waiver of Lien to Date, and Final Waiver of Lien) for all Work completed at and materials delivered to the Site during the previous month. The term "Application for Payment" means Contractor's certified request for payment for completed portions of the Cost of the Work, but in no event shall the amount requested exceed the Schedule of Values for the percentage of Work completed. Contractor also shall submit with each Application for Payment the Subcontractors' original executed waivers of lien to date for Work subject to the Application for Payment. Owner, on or before the last day of each month but no earlier than thirty (30) days after Contractor's submittal, will pay to Contractor, at Owner's discretion, an amount equal to ninety percent (90%) of the undisputed amount of each Application for Payment with ten percent (10%) of the total amount requested on such Application for Payment held as retainage. The retainage shall be paid upon the actual Date of Substantial Completion less 200% of the cost to complete remaining work. Upon execution of the Contract, Contractor shall provide Owner with payment instructions explaining the Contractors preferred methodology for payment. Those payment instructions are not to be modified without notarized approval of Contractor's President and CEO Michael Lloyd.

12.2 Payments Withheld. Architect shall withhold its Certificate for Payment or nullify, in part or in whole, as reasonably necessary to protect the Owner, any Application for Payment, or Owner may withhold payment for the following reasons: (1) Defective Work not remedied; (2) claim made, asserted, or filed against Owner or reasonable evidence indicating such a claim may be asserted; (3) lien claim made, asserted, or filed regarding the Project; (4) failure of Contractor to properly make a payment to a Subcontractor or failure of Subcontractor to properly make a payment to another Subcontractor; (5) improper, erroneous, or incomplete Application for Payment; (6) unauthorized deviation by Contractor from Contract Documents; or (7) the inability of Contractor, in the reasonable judgment of Owner or Architect, to complete the Work within the Contract Time. The term "Certificate for Payment" means a statement from Architect to Owner confirming the amount of money due to Contractor for Work accomplished or materials and equipment suitably stored, or both, during a specific period.

12.3 Submittals at Substantial and Final Completion. Upon Substantial Completion of the Work, Contractor shall bind three (3) copies into three (3) respective folders of all guarantees, warranties, certificates of inspection, operation, maintenance and operating instructions, and similar documents and deliver the folders to Owner. Each folder shall contain a summary of the material included, the character of the Work, the respective names of the Contractor and all of the Subcontractors that performed the Work, the period of the guarantees, and the conditions of the guarantees. Final Completion shall occur only upon Contractor: (1) completing all Punch List items to the satisfaction of Owner, which Punch List shall be prepared after Substantial Completion of the Work as determined by Owner; (2) tendering to Owner original, executed, and notarized final lien waivers for Contractor and all Subcontractors, the final Application for Payment, and other close-out documentation as required by Owner to Owner's satisfaction; (3) delivering to Owner all executed Change Orders, if any; and (4) delivering to Owner all applicable as-built drawings, warranties, and guarantees not already delivered.

12.4 Lien Indemnity. Contractor agrees to keep the property that is the Site of the Project and any funds held by Owner or any lender of Owner free of any and all liens (including stop notices) by any and all Subcontractors. Should any such lien be asserted, Owner, in its sole, absolute, and subjective discretion, may (1) require Contractor, at Contractor's expense, to furnish an appropriate bond, letter of credit, or title indemnity of one hundred fifty percent (150%) of the lien amount to remove the effect of the lien from such property or funds; (2) withhold funds otherwise due Contractor equal to one hundred fifty percent (150%) of the lien amount to assure payment of such liens; and/or (3) consider Contractor in default and seek any or all remedies identified in Section 13 hereof. In addition, if directed by the Owner and the Project is located in the State of Maryland, the Contractor shall, at its sole cost and expense, (a) file a petition with the clerk of the circuit court of the county where a lien claim is filed seeking to substitute a bond for the property subject to a lien claim all in compliance with Maryland law; (b) incur all costs associated with such petition including the cost to procure and post a bond under the Maryland Mechanics Lien Act; and (c) fully comply with Maryland Mechanics Lien Act, to effectuate the substitution of a bond for the lien claim to clear title to the real estate where the Project is located.

12.5 Lender. The Contractor agrees to cooperate fully with the Owner in complying with the provisions of any loan agreement or similar agreement between the Owner and any lender or financial partner for the Project, and agrees to furnish any and all reasonable information, reports, assignments and certificates which are required or helpful thereunder. In addition, the lender may

require that all payments to Contractor shall be made through a construction escrow (hereinafter referred to as the "Escrow") or such other title insurance entity (hereinafter referred to as the "Escrowee") mutually acceptable to Owner, lender, and Contractor and in accordance with the terms and conditions of a contract escrow agreement (hereinafter referred to as the "Escrow Agreement") entered into by the Owner, Contractor and Escrowee, which Escrow Agreement, upon execution by all parties thereto, shall be attached hereto and made a part hereof.

13. CONTRACTOR'S DEFAULT AND OWNER'S REMEDIES. If Contractor breaches any term of this Agreement, makes a general assignment for the benefit of creditors, or if a receiver is appointed for Contractor, then Contractor shall be in default of this Agreement. Upon Contractor's default and failure to cure such default within ten (10) days following notice thereof, Owner, without limiting or waiving any other rights that Owner may have at law or in equity, may do any or all of the following: (1) terminate this Agreement; (2) suspend Contractor from the Work or any portion thereof; (3) take possession of all or the applicable portion of Contractor's materials, tools, equipment, and appliances on the Site and finish the Work or a portion thereof, seeking compensation from Contractor for all sums Owner expended in excess of the GMAX to complete the Work or a portion thereof; (4) exercise any assignment of a Subcontract to Owner by Contractor; (5) withhold, until any breach is remedied, payments to Contractor in the aggregate amount of one hundred fifty percent (150%) of the amount Owner estimates it has been damaged or will be damaged by Contractor's default; and/or (6) seek from Contractor monetary damages in excess of any unpaid amounts due Contractor for the Work performed in order to compensate Owner for damages it sustained from Contractor's default including, without limitation, compensation for additional management and administrative services, the fees and costs for design professional services and the services of other consultants, attorneys' and experts' fees and costs, additional costs of other contractors to perform the Work, and damages for delay to the Project. Owner shall be entitled to collect its reasonable attorneys' fees and costs, including expert and consulting fees and costs, incurred in enforcing any term of this Agreement or as a result of Contractor's breach of any term of this Agreement, including, without limitation, participation in any settlement discussions, alternative dispute resolution processes, or litigation.

14. TERMINATION. This Agreement may be terminated by Owner without cause upon ten (10) days' prior written notice from Owner to Contractor, in which event Owner shall pay Contractor for that portion of the Work plus demobilization, subcontractor cancellation costs, and the cost of any purchase order placed by Contractor which cannot be cancelled (and any materials or equipment under any such purchase order shall become the property of Owner and Contractor shall sign any documents, bills of sale or other instruments to effectuate and evidence same) less any back charges resulting in incurred or anticipated damages from Defective Work and/or Contractor's other breaches of this Agreement, which amounts shall be determined by Owner in its reasonable judgment.

15. NOTICES. Any and all notices or other communications required by this Agreement or by law shall be in writing and shall be deemed served when delivered to the party to whom it is addressed, either by hand delivery; overnight mail; e-mail, certified mail, return receipt requested, with postage prepaid; or when received by email. Either party may change its address for the purpose of this Section by giving written notice of such change to the other party in the manner provided in this Section. For purposes of this Section, all notices to Contractor shall be sent to its address (or email address) set forth above, and all notices to Owner shall be sent to Owner and Architect at their respective addresses set forth above.

16. DISPUTE RESOLUTION. Owner and Contractor agree to cooperate in resolving any claim, controversy, or dispute, whether stated in tort, contract, or otherwise (collectively, "Dispute" or "Disputes") that may arise out of or relate to the Agreement, the breach thereof, or the Work.

16.1 Continuance of the Work. Owner and Contractor agree that the Work will not be stopped or slowed in any way during the pendency of any Dispute; provided, that all monies owed for Work not in dispute are timely paid pursuant to this Agreement.

16.2 Step Negotiations. In the event a Dispute is not resolved or Owner asserts a demand in writing to Contractor in which Owner claims that Contractor has breached this Agreement, the parties shall attempt in good faith to resolve the Dispute promptly by negotiations, as described herein. Any party may give the other party written notice of any Dispute not resolved in the normal course of business. Owner and Contractor agree to meet at a mutually acceptable time and place within ten (10) days after delivery of such notice and as often thereafter as reasonably necessary to attempt to resolve the Dispute. If a party intends to be accompanied at a meeting by legal counsel, the other party shall be given at least three (3) working days' notice of such and also may be accompanied by legal counsel. All negotiations pursuant to this clause are confidential and shall be treated as compromise and settlement negotiations for purposes of all rules of evidence. If the matter is not resolved within thirty (30) days from the initial written notice of the Dispute, or if no meeting takes place within fifteen (15) days after such initial notice, then either party may initiate mediation as provided herein.

16.3 Mediation. All Disputes that cannot be resolved by the parties under Section 16.2 shall be submitted to mediation before the American Arbitration Association ("AAA") in Baltimore, Maryland, or such other venue designated by Owner, and in accordance with the Construction Industry Dispute Resolution Procedures of the AAA then in effect. The parties shall share the mediator's fee and any AAA filing fees equally. Submission to mediation is a condition precedent to arbitration as set forth below. The parties will not attempt to subpoena or otherwise use as a witness any person who serves as a mediator, will not assert claims

against the mediator as a result of the mediation, and will hold the mediator harmless from claims by third parties arising out of or relating to the mediation provided for in this Section. If the Dispute is not resolved by the earlier of thirty (30) days after the last mediation session or ninety (90) days after the mediation demand, either party may initiate arbitration as set forth below. Agreements reached in mediation shall be enforceable as settlement agreements in any court having jurisdiction thereof.

16.4 Arbitration.

16.4.1 AAA/Notice. All Disputes not resolved under Sections 16.2 or 16.3 above shall be decided by confidential, binding arbitration in Baltimore, Maryland, or such other venue designated by Owner, and in accordance with the AAA Construction Industry Dispute Resolution Procedures then in effect. Notice of demand for arbitration must be filed in writing with the other parties to this Agreement and with the AAA. The demand must be made within a reasonable time after the Dispute has arisen. In no event shall the demand for arbitration be made if institution of legal or equitable proceedings based on such Dispute would be barred by the applicable statute of limitations.

16.4.2 Discovery. Each party shall be entitled to depose no more than four (4) fact witnesses for no longer than eight (8) hours each. Each party shall be entitled to depose any and all retained expert opinion witnesses for no longer than eight (8) hours each. Each party shall produce to the other all non-privileged records that have relevant information or are reasonably calculated to lead to the discovery of relevant information relating to the Work or the Dispute. The Arbitrator shall resolve all discovery disputes. The Arbitrator may modify these discovery limitations for good cause shown.

16.4.3 Arbitrator. The Arbitrator shall have authority to order specific performance, including, without limitation, interim injunctive relief prior to the Dispute being resolved. The Arbitrator shall have the authority to decide all issues concerning the fulfillment of any condition precedent to the arbitrability of a claim or defense; the amount of damages to be awarded, if any; and the arbitrability of the issues presented. The Arbitrator is not empowered to award damages in excess of compensatory damages, such as punitive damages. Notwithstanding anything to the contrary, the term "Arbitrator" as used herein shall consist of one (1) arbitrator, regardless of the size of the claim or counterclaim. An arbitrator eligible to hear the Dispute shall have at least five (5) years of experience as an arbitrator with the AAA and/or another neutral organization, be familiar with construction industry practices, and be a practicing lawyer.

16.4.4 Joinder. At either party's option, third parties who are subject to a valid arbitration agreement with the party seeking joinder may be joined in the arbitration by consolidation, joinder, or otherwise. Owner agrees to include a similar arbitration clause in the agreement with Architect requiring the Architect to be joined in any arbitration, by consolidation, joinder, or otherwise.

16.4.5 Award. The award of the Arbitrator shall be enforceable in any court of competent jurisdiction, and each party consents and submits to the jurisdiction of any such court for purposes of such action.

16.5 Prevailing Party Attorneys' Fees. In the event that any action, suit, or other proceeding is instituted to remedy, prevent, or obtain relief from a breach of this Agreement, or arising out of a breach of this Agreement, or for any claim arising out of Contractor's or any of its Subcontractor's performance of the Work, the prevailing party shall recover all of such party's attorneys' fees, expert costs, court costs, and dispute expenses incurred in each and every such action, suit, or other proceeding.

17. MISCELLANEOUS.

17.1 Social Security and Other Taxes. Contractor shall keep all records and make all payments required by the Federal Social Security Act and all Social Security, Unemployment Compensation, or other laws and regulations of any and all states in which Contractor does business.

17.2 Owner's Retention of Funds. In addition to amounts withheld under Sections 12 and 13 hereof, Owner may retain any funds that, in its sole, absolute, and subjective discretion, Owner deems necessary for reimbursement for any of Contractor's breaches of this Agreement. No interest shall be payable to Contractor on any funds withheld by Owner for any reason under this Agreement.

17.3 Contract Documents are Owner's Property. All Contract Documents, whether prepared by Contractor or others, shall be the property of Owner. Contractor shall prepare and provide at the completion of the Work CAD drawings of all documents prepared by Architect, marked to show significant changes from the original Construction Documents that were the basis for the Work.

17.4 Integration. This Agreement constitutes the entire understanding of the parties hereto and supersedes all prior negotiations, representations, or agreements. Any provision of this Agreement found to be unenforceable shall not invalidate the remainder of the Agreement. This Agreement may only be modified by a written amendment executed by both parties.

17.5 Interpretation. Section headings are for convenience of reference only and are in no way intended to interpret, define, or limit the scope or content of this Agreement or any provision hereof and shall be given no legal effect in the interpretation of this Agreement. This Agreement shall be construed in accordance with the laws of the state in which the Project is located without giving effect to the state's principles of conflicts of laws. The terms of this Agreement shall supersede any inconsistent terms in any other Contract Documents, including, without limitation, the exhibits attached hereto.

17.6 Audit. Owner and its representatives shall have access at any time to all of Contractor's and/or Subcontractors' books, correspondence, instructions, meeting minutes, drawings, receipts, vouchers, memoranda, and other records relating to the Work. Contractor and Subcontractors shall preserve in Contractor's or Subcontractors' usual offices all of these records, and Contractor and Subcontractors shall maintain them at Owner's discretion for three (3) years from the date of final payment and, upon Owner's request, shall deliver them to Owner. Contractor's and Subcontractors' records shall be of sufficient detail to justify all costs and charges for Contractor and Subcontractors. Contractor promptly shall repay Owner for any overpayments or unsupported costs that Owner or its auditors identify, plus interest thereon at one and one half percent (1 ½ %) per month from the date of the overpayment or unsupported cost, plus costs of the audit.

17.7 Assignment. Contractor shall not assign or transfer this Agreement without first procuring the prior written consent of Owner, which consent may be withheld in Owner's sole, absolute, and subjective discretion. Owner may assign or transfer its interest in this Agreement without the consent of Contractor or other limitation. Owner shall have no further duties or obligations under this Agreement upon its assignment of all of its rights. This Agreement shall be binding upon and inure to the benefit of the parties hereto, and their successors and assigns.

17.8 No Liability of Owner. Notwithstanding anything to the contrary contained in this Agreement, Owner's review or approval of any or all documents or other matters required herein shall be for the purpose of providing Contractor with information as to Owner's objectives and goals with respect to the Project and not for the purpose of determining the accuracy and completeness of such documents.

17.9 Mutual Waiver of Consequential Damages. Owner and Contractor specifically waives all claims for lost opportunities, lost or unearned profits, overhead, incidental costs, expenses due to suspension or termination, and for consequential, special, punitive, or indirect damages of any kind; provided, Owner's waiver shall not apply to any such damages it is entitled to seek pursuant to Section 13 above.

17.10 Advertising. Contractor shall not (i) photograph the Project, (ii) submit photograph(s) of the Project for publishing or to contests, and/or (iii) identify or use Owner's or the Project's respective names or addresses regarding any such photograph or submission unless Contractor receives Owner's prior consent in writing, which consent shall be granted or denied solely in Owner's sole, absolute, and subjective discretion.

17.11 Non-Recourse. Notwithstanding anything to the contrary herein, the Contractor agrees that its sole recourse for the payment of any amounts owed by the Owner under this Agreement, or for any claim against the Owner in connection with this Project, shall be against only the Owner's interest in the site and improvements thereon, and without limitation, that no recourse shall be had against: (i) any other assets of the Owner, (ii) any present or future, direct or indirect constituent entity of the Owner, (iii) any present or future, direct or indirect principals or investors, officers or directors, shareholders, trustees, beneficiaries, partners, participants, advisors, managers, employees, agents, affiliates of Owner or of any of Owner's present or future, direct or indirect constituent entities, or (iv) any lien, successor or assign of any Owner's present or future, direct or indirect constituent entities. Such exculpation of liability is absolute and without any exception, and shall survive any termination, expiration or assignment of this Agreement.

17.12 Prior Work. The Contractor agrees that all Work, services and other activities rendered in connection with the Project prior to the date of this Agreement , are hereby deemed part of the Work and shall be governed hereby. The Contractor further represents and warrants to the Owner (i) all such Work, services and other activities rendered prior to the date of the Agreement were performed in accordance with the requirements of the Contract Documents, and (ii) that the Contractor is not aware of any claims that the Contractor may have in connection with the Project as of the date of the Agreement including, without limitation, any claim for an adjustment in compensation or the Contract Time and the Contractor hereby waives and forfeits all rights to any such claim.

EXHIBIT G

Forms of
Application for Payment,
Contractor's Sworn Statement,
Waiver of Lien to Date,
and
Final Waiver of Lien

APPLICATION FOR PAYMENT

TO OWNER _____ **APPLICATION NO.** _____
FROM CONTRACTOR: _____ **EFFECTIVE DATE:** _____
PROJECT: _____ **PERIOD TO:** _____
TYPE OF WORK: _____

This Application for Payment attaches and incorporates hereto a Contractor's Sworn Statement current through the Effective Date of this Application for Payment.

1. **GMAX** $_____
2. **Net Change by Change Orders:** $_____
3. **GMAX to Date:** $_____
4. **Total Completed and Stored to Date:** $_____
5. **Retainage:** $_____
6. **Total Earned Minus Retainage (Lines 4-5):** $_____
7. **Line 6 Minus Prior Payments:** $_____
8. **CURRENT PAYMENT DUE:** $_____
9. **BALANCE TO FINISH:** $_____

CHANGE ORDER SUMMARY:

A. Total Change Orders Issued by Owner in Prior Months $_____
B. Total Change Orders Issued by Owner this Month: $_____
C Net Changes by Change Order: $_____

CONTRACTOR'S AFFIDAVIT

STATE OF_____ PROJECT:
) SS _____
COUNTY OF_____)

The undersigned ("Contractor"), being duly sworn, certifies that the Work covered by this Application for Payment has been completed in accordance with the Contract Documents, that all amounts have been paid by the Contractor for Work that previous Certificates for Payment were issued for and for which payments were received from the Owner, and that current payment shown herein is now due.

CONTRACTOR: _____

By: _____

Title: _____

Date: _____

Subscribed and sworn to me this ___ day of _____,20__

Notary Public_____
My Commission Expires_____

ARCHITECT'S CERTIFICATE FOR PAYMENT

In accordance with the Contract Documents, based on on-site observations and the data comprising this application, the Architect certifies to the Owner that to the best of the Architect's knowledge, information, and belief, the Work has progressed as indicated, the quality of the Work is in accordance with the Contract Documents, and the Contractor is entitled to the AMOUNT CERTIFIED.

AMOUNT CERTIFIED $_____

(Attach explanation if *amount certified differs from the amount applied for.)*

ARCHITECT: _____

By: _____

Title: _____

Date: _____

This Certificate is non-negotiable. The AMOUNT CERTIFIED is payable only to the Contractor named herein. Issuance, payment and acceptance of payment are without prejudice to any rights of the Owner or Contractor under this Agreement.

CONTRACTOR'S SWORN STATEMENT

STATE OF _____)
) SS
COUNTY OF_____)

The undersigned _____being first duly sworn, on oath deposes and says that (s)he is _____ of _____, that (s)he has a contract with _____, Owner for the following described premises in said county, to wit: _____;

That, for the purposes of said contract, the following persons have been contracted with, and have furnished, or are furnishing and preparing materials for and have done or are doing labor on said improvement. That there is due them, respectively, the amounts set opposite their names for materials or labor as stated. That this statement is a full, true and complete statement of all Work performed to the effective date of the Application for Payment.

NAME AND ADDRESS	DESCRIPTION OF WORK	AMOUNT OF SUBCONTRACT	RETAINAGE	AMOUNT OF CHANGE ORDERS	NET AMOUNT OF PREVIOUS PAYMENT	NET AMOUNT OF THIS PAYMENT	BALANCE TO BECOME DUE
TOTAL							

AMOUNT OF CONTRACT:_____
EXTRAS TO CONTRACT:_____
TOTAL CONTRACT AND EXTRAS:_____
CREDITS TO CONTRACT:_____
ADJUSTED TOTAL CONTRACT:_____

WORK COMPLETED TO DATE:_____
LESS ___% RETAINAGE:_____
NET AMOUNT EARNED:_____
NET PREVIOUSLY PAID:_____
NET AMOUNT OF THIS PAYMENT:_____
BALANCE TO BECOME DUE (Inc. Retainage):

It is understood that the total amount paid to date plus the amount requested shall not exceed _____% of the Cost of the Work completed to date. I agree to furnish Waivers of Lien for all materials under my contract.

SIGNED:_____

TITLE:_____

Subscribed and sworn to before me this _____day of _____, 20____.

Notary Public:_____ My commission expires:_____

The above Sworn Statement should be obtained by the Owner before each and every payment.

WAIVER OF LIEN TO DATE

STATE OF *(1)* _____)
) SS
COUNTY OF *(1)*_____)

Project Name_____

TO WHOM IT MAY CONCERN:

WHEREAS, the undersigned has contracted with *(2)* _____to furnish *(3)* _____ for the premises known as *(4)*_____.

The undersigned, for and in consideration of *(5)* _____Dollars and other good and valuable consideration, the receipt of which is hereby acknowledged, does hereby waive and release any and all liens, or claim of or right to liens, under the statutes of the State of _____ relating to liens of mechanics, laborers, and materialmen with respect to and upon the foregoing described property and the improvements thereon, and with respect to any statutory lien bond, and on the material, fixtures, apparatus, or machinery furnished, and on the moneys, funds, or other considerations due or to become due from the Owner (or Contractor) on account of labor, services, material, fixtures, apparatus, or machinery furnished to this date by the undersigned for the foregoing described property.

Signed this _____ day of _____, 20___.

Signature:_____
Title: _____

CONTRACTOR'S AFFIDAVIT

STATE OF (1)_____)
) SS
COUNTY OF (1)_____)

TO WHOM IT MAY CONCERN:

The undersigned, being duly sworn, deposes and says that it has contracted with *(2)* _____, the Owner (or Contractor) for the premises known as *(4)* _____; that the total cost of the work, including extras, is *(7)* $_____, on which the undersigned has received payment of *(8)* $_____ for payment applications *(9)* _____to _____ prior to this requested payment; that all waivers submitted are true, correct, genuine, and delivered unconditionally, and there is no claim, either legal or equitable, to defeat the validity of said waivers; that the following are the names of all parties who have furnished material or labor, or both, for said work and all parties who have contracts or subcontracts for specific portions of said work or for materials for the construction thereof, and the amount due or to become due to each party; and that the items mentioned include all labor and material required to complete said work according to plans and specifications:

NAMES (include undersigned's portion of contract) (attach additional pages if necessary)	TYPE OF WORK	CONTRACT SUM	AMOUNT PAID	THIS PAYMENT	BALANCE DUE
TOTAL (undersigned MUST complete this line)		*(7)*	*(8)*	*(9)*	*(10)*

that there are no other contracts outstanding for said work, and that there is nothing due or to become due to any person or entity for material, labor, or other work of any kind or to be done upon or in connection with said work other than above stated.

Signed this _____ day of _____, 20_____.

Signature:_____
Title:_____

Subscribed and sworn to before me this
_____day of _____, 20____.
Notary Public: _____

(1) Insert names of state and county where waiver is executed.	*(6)* Insert name of state where project is located.
(2) Insert name of party who hired you.	*(7)* Insert contract sum, including extras.
(3) Describe what was furnished, e.g., carpentry, plumbing, etc.	*(8)* Insert total amount of prior payments.
(4) Provide location of project by legal description and/or common address, if known.	*(9)* Insert prior payment application numbers which have been paid.
(5) Insert amount of the previous application for payment.	*(10)* "Balance Due" plus amounts entered in the "Amount Paid" and "This Payment" columns must equal "Contract Sum" including extras.

FINAL WAIVER OF LIEN

STATE OF *(1)* _____)
) SS
COUNTY OF *(1)* _____)

Project Name_____

TO WHOM IT MAY CONCERN:

WHEREAS, the undersigned has contracted with *(2)* _____to furnish *(3)* _____for the premises known as *(4)* _____.

The undersigned, for and in consideration of *(5)* _____Dollars and other good and valuable consideration, the receipt whereof is hereby acknowledged, does hereby waive and release any and all liens, or claim of or right to liens, under the statutes of the State of *(6)* _____ relating to liens of mechanics, laborers, and materialmen with respect to and upon the foregoing described property and the improvements thereon, and with respect to any statutory lien bond, and on the material, fixtures, apparatus, or machinery furnished, and on the moneys, funds, or other considerations due or to become due from the Owner (or Contractor), on account of labor, services, material, fixtures, apparatus, or machinery heretofore furnished, or which may be furnished at any time hereafter, by the undersigned for the foregoing described property.

Signed this ____ day of _____, 20_____.

Signature:_____
Title: _____

CONTRACTOR'S AFFIDAVIT

STATE OF *(1)* _____)
) SS
COUNTY OF *(1)* _____)

TO WHOM IT MAY CONCERN:

The undersigned, being duly sworn, deposes and says that it has contracted with *(2)* _____, the Owner (or Contractor) for the premises known as *(4)* _____. That the total cost of the work, including extras, is *(7)* $_____ on which the undersigned has received payment of *(8)* $_____ for payment applications *(9)* _____ to _____ prior to this requested payment; that all waivers submitted are true, correct, genuine, and delivered unconditionally, and there is no claim, either legal or equitable, to defeat the validity of said waivers; that the following are the names of all parties who have furnished material or labor, or both, for said work and all parties who have contracts or subcontracts for specific portions of said work or for materials for the construction thereof, and the amount due or to become due to each party; and that the items mentioned include all labor and material required to complete said work according to plans and specifications:

NAMES (include undersigned's portion of contract) (attach additional pages if necessary	TYPE OF WORK	CONTRACT SUM	AMOUNT PAID	THIS PAYMENT	BALANCE DUE
TOTAL (undersigned MUST complete this line)		*(7)*	*(8)*	*(9)*	*(10)*

that there are no other contracts for said work outstanding, and that there is nothing due or to become due to any person or entity for material, labor, or other work of any kind done or to be done upon or in connection with said work other than above stated.

Signed this _____ day of _____, 20_____.

Signature:_____
Title:_____

Subscribed and sworn to before me this
_____day of _____, 20____.
Notary Public: _____

(1) Insert names of state and county where waiver is executed.
(2) Insert name of party who hired you.
(3) Describe what was furnished, e.g., carpentry, plumbing, etc.
(4) Provide location of project by legal description and/or common address if known.
(5) Insert amount of this payment.
(6) Insert name of state where project is located.
(7) Insert Contract Sum including extras.
(8) Insert total amount of prior payments.
(9) Insert prior payment application numbers which have been paid.
(10) Insert zero.